

14 June 2023

Defence witness Lorenzo Mansutti

Discussion regarding Judge's directions to the jury

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MR LORENZO MANSUTTI (sworn)

Examination-in-chief by MR MYERS

Cross-examination by MR JOHNSON

Discussion

Wednesday, 14 June 2023

(10.30 am)

(Delay in proceedings)

(11.00 am)

(In the absence of the jury)

MR MYERS: My Lord, thank you for the time that we had.

There was a matter that arose that we had to deal with, so we're grateful for that.

There is one witness that we'll be calling. If I could hand a copy of the statement, which is provided to us by the prosecution, and the documents that accompany that. Thank you.

I'm just asked to remind the court for the purpose of your Lordship's record, today is Day 129. It may be that when your Lordship is referencing with the transcripts we're not sure if that's caught up with it or not, but today is Day 129 to assist your Lordship, that's where we're up to.

MR JUSTICE GOSS: Thank you very much.

MR MYERS: There is the one witness to call and then we'll be in a position to close the case.

MR JUSTICE GOSS: Thank you very much.

(In the presence of the jury)

MR JUSTICE GOSS: Good morning, members of the jury.

I apologise for the delay in starting proceedings today and for the fact that you were brought up and then had to be taken back down, but something arose rather last minute, but we're now in a position to proceed.

Thank you.

MR MYERS: My Lord, we will shortly be closing the case for Ms Letby, but before we do that, just so the jury understand, there is a witness to be called who deals with a discrete issue that arose in the course of her evidence and that related to sanitation at the hospital.

With that in mind, could we please call Mr Mansutti to give evidence?

MR LORENZO MANSUTTI (sworn)

Examination-in-chief by MR MYERS

MR MYERS: Would you like take a seat? Would you give your name, full name, for the jury, please?

MANSUTTI: Lorenzo Mansutti.

MYERS: I'd ask you if you can keep your voice loud. I'm sure you will. If you aim it towards the back row of the jury, then we can all hear you and no one is going to think you are speaking too loudly. That is never the complaint in here. Thank you.

Could you tell the ladies and gentlemen of the jury what the nature of your employment is?

MANSUTTI: Yeah, I work at the Countess of Chester Hospital. I'm now estates supervisor, but I was estates plumber, since about 1986 when I started.

MYERS: Right. And were you working there between 2015 through to 2016?

MANSUTTI: Yes, I was.

MYERS: All right. You made a statement in these proceedings, haven't you, a witness statement?

MANSUTTI: Yes.

MYERS: Don't worry about looking at us, if you look to the ladies and gentlemen, they can hear you the better for that. That statement was dated -- was it 26 May this year?

MANSUTTI: I believe it was, yes.

MYERS: So a few weeks ago?

MANSUTTI: Yes.

MYERS: And when were you first asked to make that witness statement, roughly?

MANSUTTI: I think it was a day or so earlier. Maybe the day before.

MYERS: All right. Some a day or so before 26 May. Thank you.

Who asked you to do that?

MANSUTTI: It was my line manager who asked me.

MYERS: Who wanted to speak to you to take the statement? Do you recall who? Was it a police officer?

MANSUTTI: It was two police officers, sorry, yes.

MYERS: So they came along to take a statement from you at that point?

MANSUTTI: That's correct, yes.

MYERS: That statement was to deal with what? Do you remember what it was they were interested in?

MANSUTTI: It was questions around the plumbing and the sewage system of the Women and Children's Building.

MYERS: Right. I'm going to ask you a little bit about that if you can help us.

MANSUTTI: Yes.

MYERS: How up to date was the plumbing and sewage system -- was it at the Countess of Chester Hospital?

MANSUTTI: Yes.

MYERS: Which area of the Countess of Chester Hospital were you looking at?

MANSUTTI: I think this is the Women and Children's Building.

MYERS: Does that include the neonatal unit?

MANSUTTI: It does, yes.

MYERS: So how up to date was that at the time we're looking at, back in 2015 to 2016?

MANSUTTI: Um, I believe it was originally built in the late 60s, opened 1970s, so there'd been some improvement works over that time.

MYERS: Were there any particular issues with the pipework which was in place?

MANSUTTI: Yes, there was issues with the drainage system.

MYERS: What sort of problems emerged that you had to deal with?

MANSUTTI: Um... Sort of various blockages. You know, times where the cast iron would crack -- it was all cast iron pipe and the cast iron would crack due to a number of reasons, expansion, contraction or just age, I think.

MYERS: Just to help us, if there's a pipe in a system like this and it blocks, what can happen to the water or the sewage that would otherwise be going down that pipe?

MANSUTTI: It comes up the next lowest point, really.

MYERS: Right. And where would it come up through, what sort of places do you find --

MANSUTTI: It could come up through toilets or a wash hand basin, anywhere where there's an open outlet, really.

MYERS: Did that happen from time to time, there'd be a blockage and then --

MANSUTTI: Yes.

MYERS: And sewage or water might come up through another unit somewhere?

MANSUTTI: Yes.

MYERS: Did you get leaks there ever?

MANSUTTI: Yes, there were occasionally, yes.

MYERS: If there was an incident with sanitation like that, what would you or your staff be called upon to do?

MANSUTTI: Normally, a call would come through to the help desk - and the nature of where it was, we'd sort of attend immediately to try and rectify the issues as quickly as possible.

MYERS: And how often were you called to deal with these sort of issues?

MANSUTTI: Through the whole building it was... It was more... weekly, I guess.

MYERS: Right.

MR JUSTICE GOSS: Are we talking about 1986 onwards, when he started, or are we talking about 2015/2016?

MR MYERS: I'm focusing on 2015 to 2016. Can I check: is that right, Mr Mansutti.

MANSUTTI: Yes, I would guess weekly.

MYERS: I'm grateful, my Lord. If I wasn't clear about that, I apologise.

You understand I am asking you about 2015/2016, Mr Mansutti.

MANSUTTI: (No audible answer).

MYERS: Thank you. So maybe weekly you'd be dealing with something?

MANSUTTI: Yes, more often than not.

MYERS: When the officers came to speak to you about this were they interested in specifically things that had happened in the neonatal unit by way of blockage or leakage?

MANSUTTI: Yes, they asked -- an occasion where we had a blockage in the central labour suite, which is next door adjacent and...

MYERS: We're going to have a look at a plan in a moment and you can talk us through it. Before we do that, the incident you are talking about, we're going to look at a number of incidents, but this incident, can you tell us what happened and what went where?

MANSUTTI: To be honest, I don't think I actually attended this particular one, I think it was my colleague. But I think the drainage system had backed up and the wash hand basin, which is in nursery 1 --

MYERS: We'll take it step by step: nursery 1 in which part of the hospital?

MANSUTTI: The neonatal.

MYERS: The neonatal unit, okay. So something had backed up in the pipe?

MANSUTTI: Yes. I guess it'd backed up the wash hand basin and that's when we got the -- or the department got the call to --

MYERS: What happened with the wash hand basin, what came out of it?

MANSUTTI: I guess it was foul water out of the drain.

MYERS: Right. And to someone who isn't engaged in your line of work, foul water might mean water that isn't very nice, but you actually mean something by foul water, don't you?

MANSUTTI: Yes, foul is a generic term of what goes down toilets and wash hand basins and so forth.

MYERS: It could be human waste?

MANSUTTI: Yes.

MYERS: Sewage?

MANSUTTI: Yes.

MYERS: So foul water backed up. And where did it come out in nursery 1?

MANSUTTI: I believe it came out of the wash hand basin.

MYERS: In the neonatal unit?

MANSUTTI: Yes.

MYERS: Do you recall precisely when during 2015 to 2016 that happened?

MANSUTTI: I don't, I'm sorry, no.

MYERS: Do you know where the water had come from, the foul water?

MANSUTTI: That particular section of drainage comes from ward 32, which is the ward above the neonatal unit. So it would have come from that area.

MYERS: All right. When the officers came, did they show you any Datix reports?

MANSUTTI: Yes, they did.

MYERS: And they showed you one for the system dated 26 January 2016, didn't they? We're going to have a look at it in a minute.

MANSUTTI: Yes.

MYERS: But do you remember, there was a couple, wasn't there?

MANSUTTI: There was two.

MYERS: And one of them falls in the date range we're looking at. So you had an opportunity to look at that, Mr Mansutti. Can I show it to you again and just have a look at what it was you dealt with on that occasion?

MANSUTTI: Certainly.

MYERS: I'm going to ask Mr Murphy please to put up the Datix form, which is at D35. Thank you.

Have a look at the screen, Mr Mansutti. Just enlarge it a little bit, please. I just ask for your input on what we have here. Can I ask, are you familiar with the way the Datix system works?

MANSUTTI: Yes.

MYERS: All right. We've got a ID number for the incident.

Can you see 137935?

MANSUTTI: That's correct.

MYERS: And can you help us, can you see where the reported date is? Just a few lines down.

MANSUTTI: 26/1/2016.

MYERS: All right. 26 January 2016. Scroll down to see the location of what it was you were called to deal with.

So in the neonatal unit?

MANSUTTI: Yes.

MYERS: Thank you. And if we go down to see the type of incident, can you help us, just looking there, at what it was you were dealing with as it is entered into the form?

MANSUTTI: Um... The category was environment, I guess that's the category on the actual drop-down box on the Datix, and sub-category flood.

MYERS: If we scroll down over the page we can get a little more detail. So we've got 26 January 2016. We can see the time 02.30. Does that mean, so far as you're aware, the time this was identified?

MANSUTTI: Yes, I think that was probably the time that the issue was identified on the unit and potentially when they instigated the --

MYERS: All right.

MANSUTTI: -- call-out procedure, maybe, or was that a bit later --

MYERS: We'll have a look in the entry. Description:

"Nursery 4 currently closed due to plumbing work/deep cleaning of nursery. Lights therefore off inside nursery and door kept ajar. Member of staff walking past nursery at approximately 02.30 noticed glistening upon the floor. Lights switched on and floor noted to be completely flooded. Mixer tap was switched on and sink completely blocked. Domestic supervisor bleeped and informed of flooded floor. Attempt made to clear blockage with forceps. One piece of white cloth extracted, which appeared to have been forced in. Water within sink noted to contain much black debris. Sink still blocked however. Tap lever secured to off position as best as possible with a length of oxygen tubing. Floor cleared by night domestic.

"Nursery noted to be flooded again at approximately 04.30. Mixer tap lever had sprung out to very slightly on position and floor almost completely flooded again. Domestic supervisor informed. Bed coordinator informed who advised to bleep the on-call plumber. Same performed. Plumber arrived 05.50. Managed to suction 2 further pieces of white cloth from plughole. Sink now draining. Tap lever also fixed."

Do you recall anything in particular about that incident?

MANSUTTI: No, I don't. I think it was my colleague who actually attended on that night.

MYERS: So we can be quite clear, that's different from the incident in nursery 1 where you described foul water coming through the sink?

MANSUTTI: Yes.

MYERS: And just for our purposes, can we scroll down, Mr Murphy, to see who reported that incident? We know from these forms, Mr Mansutti, there is a section for the incident reporter and, just so the jury can follow this, we can see that's reported by someone called Mr Christopher Booth who's a neonatal practitioner.

MANSUTTI: That's correct.

MYERS: Thank you. We can take that down, thank you, Mr Murphy.

When you are called to attend plumbing or sewage incidents in the hospital, is there something called a service report that is completed to keep a record of what happened?

MANSUTTI: Yes. More often than not. Not every time.

MYERS: All right. I'm going to go through a number of them that we've been provided with and, since it's dealt with by you or your department, I'm going to ask you to assist us with what we have in them. Is that all right?

MANSUTTI: Yes.

MYERS: There's about 10 of them. I'm going to ask Mr Murphy to put up on the screen a document. As it happens, as we'll see, we've got these documents in the order that they were given to us here. They're not actually in date order. So if everyone can bear with me, I'm going to ask Mr Murphy to take us through them so they are in date...

I'll ask Mr Murphy to take us through them in date order. If we start in date order. Can you help us, are you familiar with this type of form?

MANSUTTI: Yes.

MYERS: So a service report. Can you help us with how it is this form is put together?

MANSUTTI: What normally happens is we have the estates help desk and whenever there's a fault that occurs in the trust, the telephone number or email will come through and if it's normally urgent -- sorry, if it's urgent they normally ring up rather than email because it needs attention sort of straightaway. That then gets logged on the system, the FM First system, a system we still use, albeit an updated version.

MYERS: Thank you. The information we need to look at is in the top half of these forms as they're on the screen, so we'll just

have a look at what we have. Can you help us, first of all, then with the date that this assistance was requested?

MANSUTTI: Date requested is 4/7/2015.

MYERS: So 4 July 2015. We can see that on the right-hand side underneath the bar code; is that right?

MANSUTTI: That's correct.

MYERS: That's where you get that from?

MANSUTTI: Yes.

MYERS: Okay. Thank you. When an incident comes in, is it allocated to a particular member of the estate staff?

MANSUTTI: Yes, we've got all trades and assistance as well, so the estates officer or the help desk will determine.

MYERS: And this is allocated to C Clark.

MANSUTTI: That's my colleague, Chris Clark.

MYERS: Thank you. Can you help us with where this incident is that's reported to you, the actual location in the hospital?

MANSUTTI: The location says ward 35, which is the central labour suite.

MYERS: We'll have a look at the plan in a moment for you to help us, but just so the jury can follow, "Ward 35 CLS", if you follow down on the right-hand side it's in the large box at the bottom in the middle, the word "location" with "Ward 35 CLS" next to it?

MANSUTTI: Correct, yes.

MYERS: Can I just check you can see that, ladies and gentlemen?

The forms follow this standard format, so once we have done this, it'll be quicker.

Pausing there, if we come out of the form I'm going to put a plan on the screen for you to help us with where ward 35 is, Mr Mansutti.

We'll come back to this sheet in a moment, but if we could have the plan, please, Mr Murphy.

We're all familiar particularly with what we have on the left-hand side of the screen here, which is the neonatal unit and those parts of the hospital closest to it. So you take a look for a moment just to get your eye in on the plan.

MANSUTTI: Yes.

MYERS: And can you orientate yourself to that? So where we see reference to CLS, which is the central labour suite, can you help us with what area of the hospital that is?

MANSUTTI: Yeah, we've got the left-hand plan, if you like --

MYERS: Yes.

MANSUTTI: -- which is --

MYERS: Do you want to use that mouse next to you? If it's on you can show us with that.

MANSUTTI: So we've got left-hand section there which equates to sort of that area there (indicating), I guess. That's the courtyard. That's consistent with that.

MYERS: Right.

MANSUTTI: So central labour suite is, from the main entrance, all that area there.

MYERS: All right. Ward 35 of the central labour suite, can you help us with where that would be?

MANSUTTI: It's the same unit. 35 is central labour suite.

MYERS: It's the whole of that area?

MANSUTTI: Yes.

MYERS: Does the pipework run from there to where? From the central labour suite, where does it run to?

MANSUTTI: Pretty much all over. If we've got ward 32, which is above... So all the waste pipes will run --

MYERS: All right.

MANSUTTI: -- down into the unit and then into the underslab drainage and ultimately outside.

MYERS: Did you say ward 32 is above --

MANSUTTI: Ward 32, which is above neonatal.

MYERS: So that's the ward above neonatal?

MANSUTTI: Yes.

MYERS: And what's the ward below called? Is that ward 35?

MANSUTTI: Yes, that's 35 CLS, which is the same unit.

MYERS: So 35 is downstairs and 32 is upstairs?

MANSUTTI: Yes.

MYERS: Thank you for that. We can go back then just to the report that we have. If we go back to the first page of the service reports, please, Mr Murphy.

We have a series of reports dealing with the CLS, the central labour suite, and the neonatal unit. We're just going to have a look at them now.

What was the problem that Mr Clark was called out to deal with on 4 July 2015?

MANSUTTI: Well, the detail on the report says, "Blocked drain CLS", so again that could be anywhere on that unit.

MYERS: Thank you. "Blocked drains in the CLS", that's specifically ward 35, is it?

MANSUTTI: Yes.

MYERS: The downstairs part?

MANSUTTI: Yes.

MYERS: Thank you. If there's a blocked drain somewhere, what happens to the water in the system? Can you say or do you not know?

MANSUTTI: Sorry, which?

MYERS: If the drain is blocked, water that would otherwise go out, where does it go to?

MANSUTTI: It just continues to flow into the drain, if it's still in use, unless it's put out of order.

MYERS: Could we go to the second page then of this? This is 8 August 2015; is that right?

MANSUTTI: Yes.

MYERS: Allocated to you?

MANSUTTI: Mm-hm.

MYERS: And what was the incident you dealt with on 8 August 2015?

MANSUTTI: Again, the detail says, "Flood in CLS".

MYERS: It says ward 35, doesn't it --

MANSUTTI: Yes.

MYERS: -- if you look on the right-hand side?

MANSUTTI: Yes.

MYERS: So a flood in the downstairs ward of the CLS?

MANSUTTI: Yes.

MYERS: Thank you. Can we go to page 3, please?

MR JUSTICE GOSS: Sorry, just a puzzle. When you say 8 August, the planned date says 10 August.

MR MYERS: "Date requested" I'm looking at, my Lord, at the top. "Date requested." Then if we look at the bottom left-hand corner it's got "call out" and your name, Mr Mansutti, hasn't it?

MANSUTTI: That's correct.

MYERS: And does that assist us with what actually, so we can be quite clear, the date is that you were called out?

MANSUTTI: It would have been the 8th (overspeaking) --

MR JUSTICE GOSS: So you're called out on the 8th and then you say, "We'll do the work on the 10th or plan to do the work on the 10th"?

MANSUTTI: No, that would have been --

MR JUSTICE GOSS: Someone does.

MANSUTTI: -- repaired, yeah.

MR JUSTICE GOSS: Sorry, it was me being stupid.

MR MYERS: Not at all, my Lord. There are a number of dates here. Certainly the date that the incident is reported is 8 August.

MR JUSTICE GOSS: I can see that at the very bottom.

MR MYERS: Page 3, then, please. We move to October, 2 October 2015. Is this the same location that we're dealing with?

MANSUTTI: Yes.

MYERS: What's the issue on this occasion?

MANSUTTI: Again, blocked drains on ward 35 CLS.

MYERS: All right. We're going to go through in date order, which means we need to go next to page 7, Mr Murphy, which takes us to 6 August, 6 August 2015 -- sorry, 6 October 2015. Can you help us with the location of this particular incident?

MANSUTTI: Yes, that's in the neonatal unit.

MYERS: All right. What was it that you were called out to deal with on 6 October 2015 in the neonatal unit?

MANSUTTI: To investigate floods. So that could have been a number of --

MYERS: All right (overspeaking). When it says flood though, so no one can be in any doubt, we're not talking about floods as a result of rainwater coming in?

MANSUTTI: Possibly.

MYERS: It could be?

MANSUTTI: It could be, yes.

MYERS: What else would it be as a result of?

MANSUTTI: It could be a tap, a wastepipe that's -- you know, a trap underneath a wash hand basin.

MYERS: A tap, a wastepipe. This doesn't help us with precisely what it was?

MANSUTTI: No.

MYERS: Thank you.

MANSUTTI: Sorry, we haven't got that detail on there.

MYERS: It's all right.

MR JUSTICE GOSS: When you say a wastepipe, you mean a leaking wastepipe or a blocked wastepipe or what?

MANSUTTI: A leaking wastepipe, possibly.

MR MYERS: Thank you. Next in time we go to 26 January, which is at page 8 of this bundle.

So 26 January 2016 now. Can you help us with what it was that your colleague was dealing with and where it was on this occasion, Mr Mansutti?

MANSUTTI: Yes. Again, 26 January says a leak in the neonatal unit. Again there's not much detail there other than --

MYERS: All right.

MANSUTTI: -- what it could be.

MYERS: Can we go next, please, to page 4 in this bundle, which is 24 February. What are we dealing with on this occasion?

MANSUTTI: Well, we're on ward 35, CLS, again:

"Detail: burst pipe in sluice."

MYERS: All right.

MANSUTTI: Again, I... It could be a number of things, really.

MYERS: I should say that we saw a Datix form earlier on, which is dated 26 January, so that would be just before this, actually, just to put that in its order.

Can we go next, please, to page 9, which is 18 March 2016. Just take time to have a look there if you would, please, Mr Mansutti, and let us know what it was that was being dealt with on this occasion.

MANSUTTI: Yes, 18 March, we've got:

"Sinks blocked on neonatal unit, nursery 2."

And it says "kitchen" -- there's sort of two kitchens on neonatal, there's a ward kitchen and like a meal kitchen, but it doesn't specify which.

MYERS: It doesn't give us the cause of the blocked sink?

MANSUTTI: No.

MYERS: That could be a number of reasons, I take it?

MANSUTTI: Yes.

MYERS: So we saw -- you've told us about an incident where there was foul water backing up in the sink in nursery 1, that happened in 2015 to 2016, didn't it, at some point?

MANSUTTI: Yes.

MYERS: And we've seen the Datix form for 26 January 2016 in nursery 4, the flood in nursery 4. And we've got nursery 2 on 18 March 2016. Thank you.

Can we then go to page 5 next, which is 10 April 2016. Can you tell us what it was you were or your colleague was dealing with and where on this occasion, please?

MANSUTTI: Yes, it looks like my two colleagues, Barry Jenkins and Chris Clark were called to Sluicemaster drains blocking on central labour suites on 10 April.

MYERS: And that's on ward 35 --

MANSUTTI: Yes.

MYERS: -- if we look at "location", which is the downstairs part? Is that the downstairs part?

MANSUTTI: It is.

MYERS: On the same level as the NNU as it happens?

MANSUTTI: Yes.

MYERS: What is the Sluicemaster?

MANSUTTI: All the -- the bedpan machine. So patients, rather than going to the toilet, will use a bedpan and then that gets macerated.

MYERS: Macerated means mashed up as it goes through?

MANSUTTI: Mashed up and chucked down the drain.

MYERS: That's human waste of some sort that's gone down there?

MANSUTTI: Yes.

MYERS: And that's led to -- and the drains are blocked?

MANSUTTI: Yes, that's looks like what's happened, yes.

MYERS: Can we go next, please to, page 10, which is 6 June.

Can you help us with what this is, please, Mr Mansutti?

MANSUTTI: Yes. Again, details of a flood in the courtyard of the neonatal unit. There is a small courtyard outside of one of the -- it used to be a manager's office, I think.

So occasionally, in a heavy downpour, these areas do flood, so it could be in relation to that.

MYERS: It could be that. Is that the courtyard that you pointed out on the plan when you said courtyard?

MANSUTTI: Yes.

MYERS: It could be a downpour. Could that also be in connection with any water backing up from the system?

MANSUTTI: Um... I don't think so. I don't think the foul drains run that way. I think that's just the surface and --

MYERS: That's more likely to be surface water?

MANSUTTI: I would have thought so. Without looking at the detailed...

MYERS: Can we go, finally, then to what is page 6 in our bundle, and the last date we have the records for, which is 5 July 2016.

MANSUTTI: This is a request from estates officer MSJ, which is Mark Jones. He's raised a job for various plumbing jobs in neonatal.

MYERS: Can you take us through them, please?

MANSUTTI: Yes:

"Check Pall water filters for poor flow. Check all valves in the ceiling void are fully open."

Sorry:

"... neonatal and by theatres in CLS. And also a leaking sink in the sluice room to be done by close of play today."

MYERS: "Leaking sink in the sluice room." This is the last of these plans, so I am going to ask -- of these reports.

I'm going to ask if we can just put the plan back up so you can just identify the sluice room for us, please.

Thank you, Mr Murphy.

Can you help us with where the sluice room is? We may have seen it before, but if you help us with where you understand the sluice room to be.

(Pause)

MANSUTTI: I think what they class as the sluice room is that (indicating).

MYERS: Just go from your recollection, please.

MANSUTTI: That room there (indicating).

MYERS: "Leaking sink in sluice room." What goes in the sluice room?

MANSUTTI: I think that... I don't actually think that's actually a sluice room. I think the detail of the job was probably incorrect. There's some wash hand basins and sink units in there. I guess it was a leak from one of those sink units.

MYERS: Do you know what the cause of it was --

MANSUTTI: Sorry --

MYERS: -- or what came out of it?

MANSUTTI: Sorry, I couldn't...

MYERS: Is there a sluice in the neonatal unit for getting rid of waste products?

MANSUTTI: No.

MYERS: Not as far as you know?

MANSUTTI: No.

MYERS: Is that leak caused by anything backing up or anything coming in?

MANSUTTI: Possibly, yeah. I mean, there's -- the drains sort of run, you know, from that way (indicating) outside as well, so...

Again, I'd have to look at the plan drawings to see if anything's connected that way.

MR JOHNSON: All right. Mr Mansutti, thanks for coming along. It must have been quite short notice and going through those details with us. Thank you.

Cross-examination by MR JOHNSON

MR JOHNSON: Mr Mansutti, does it come to this, that this area of the hospital at the time was quite an old area and had the occasional plumbing problem?

MANSUTTI: Yes, correct.

JOHNSON: A lot of the problems are caused by adults putting things down sinks that shouldn't go down sinks?

MANSUTTI: Yes, that's one of the reasons, yes.

JOHNSON: And for example, when we looked at the Datix on 26 January 2016, someone has recorded the fact that somebody had forced a white towel down the sink, or bits of white towel down the sink. So that seems to have been the problem?

MANSUTTI: It seems that way, yes.

JOHNSON: All right. Did any of the problems that we've looked at mean that there were -- at any point there were no handwashing facilities in the neonatal unit?

MANSUTTI: No, I don't think so. I think that we've got a procedure in place at the trust. We have like portable handwashing facilities. If it comes to that extreme, we do provide them.

JOHNSON: But none of these issues that you've told us about ever led to that situation, did they?

MANSUTTI: I don't think so, no.

JOHNSON: No. Did any of the issues that you have dealt with mean that there was raw sewage running across the floor in the intensive care unit of the neonatal unit?

MANSUTTI: I think there has been sewage floods.

JOHNSON: But I'm talking about the intensive care unit in the neonatal unit.

MANSUTTI: In nursery 1?

JOHNSON: Yes.

MANSUTTI: Yes, I think...

JOHNSON: Which was that?

MANSUTTI: I think it was the flood from -- in nursery 1, the wash hand basin, that would have --

JOHNSON: I'm not clear about this. Which one are you talking about? All the ones you've been through, which incident are you talking about?

MANSUTTI: It was the incident where we had water coming up from the nursery 1, the right-hand wash hand basin in nursery 1. I think it was the first incident we spoke about.

JOHNSON: Right. And that is undated, as I understand it?

MANSUTTI: Yes, it's not on a Datix.

JOHNSON: It's not on a Datix?

MANSUTTI: No.

JOHNSON: It's not in any of these documents that we've had; is that right?

MANSUTTI: That's correct, yes.

JOHNSON: Your knowledge of it, how do you have knowledge of this single incident?

MANSUTTI: Um... I think... I mean, the incident, it did happen because it was obviously discussed, how do we sort of rectify it. We did some works afterwards, we diverted some sewerage pipes away from that area to make sure it didn't happen again.

JOHNSON: So this was a one-off; is that right?

MANSUTTI: I couldn't... I couldn't say yes or no, I'm sorry.

JOHNSON: All right. I'm just trying to work out exactly what we're dealing with; all right?

MANSUTTI: Yes.

JOHNSON: Presumably it was dealt with as an emergency from the perspective of your department?

MANSUTTI: Yes.

JOHNSON: And was there ever a repeat of it so far as you were aware?

MANSUTTI: Well, as I say, we did some works afterwards to make sure it didn't happen again.

JOHNSON: So one incident?

MANSUTTI: Yes.

JOHNSON: As far as you remember?

MANSUTTI: Yes.

JOHNSON: There's no record?

MANSUTTI: Yes.

JOHNSON: All right. About half the incidents we've looked at have nothing at all to do with the neonatal unit, do they? They're happening in ward 35 or ward 32. So would they affect what was going on in the neonatal unit at all?

MANSUTTI: Only other than some of the drainage is connected between the two units.

JOHNSON: But there would be no obvious consequence to what's going on in the neonatal unit, would there, if there's an issue with plumbing in ward 32 or ward 35?

MANSUTTI: Not on those areas, no.

MR JOHNSON: I didn't think so. Those are all the questions I have, thank you.

MR MYERS: Does your Lordship have any questions for Mr Mansutti?

MR JUSTICE GOSS: I don't, thank you very much.

Thank you for coming to give your evidence, Mr Mansutti. That completes it and you're free to go.

(The witness withdrew)

MR MYERS: My Lord, that's the case for Ms Letby.

MR JUSTICE GOSS: Thank you very much.

That, members of the jury, completes the evidence in the case. You'll remember I told you last week that there either would or wouldn't be some more evidence today and you've heard what evidence there is today, further evidence, and that therefore is the end of the evidence that will be placed before you. The remaining stages, as you know, are I have to give you directions of law that you must apply in relation to your task as the judges of the facts. Then counsel have to address you and then I give you further directions of law and review the evidence as I promised I would from the outset. That will be a sequential review of each count on the indictment, the evidence that you've heard in relation to it by reference to some of the documents that you have been referred to during the course of the evidence. So it becomes a narrative, essentially, of events, and what the evidence is in relation to those events.

The first stage, therefore, is for there to be written directions of law give to you. It's not possible for us, that is counsel and me, to finalise those written directions until the evidence is complete.

That stage has just been reached. I have obviously done a lot of work in relation to this and I have prepared what I consider to be appropriate directions of law to give to you, but I have an obligation to discuss them with counsel to give them the opportunity to make representations about what I'm going to give you by way of directions so that, if necessary, I can amend those directions.

That process can be time-consuming. It is likely to take a little time today and rather than having you hanging around for the rest of the day, I think it's better that I try and address all those issues today in your absence so that when we start tomorrow you can have a clean start at 10.30 with me giving you what are the final directions of law. All right?

I anticipate, and I'll look to counsel when I say this, I anticipate that in fact you will not be required for very long tomorrow, assuming that we are at the stage or I am at the stage that I can give you the written directions of law at 10.30. I don't think you'll be here for very long after that. But I want to start giving you directions of law so that you know what lies ahead, so to speak, but it's not going to be a full day for you tomorrow. Tomorrow, as you know, is the last working day of this week because we're not sitting on Friday. So I'm trying to tell you, in a rather convoluted way, what the timetable is going to be.

So we will do that tomorrow, but we will go no further, and then on Monday, which is a full week barring some unforeseen event occurring, Mr Johnson will address you at the beginning of the

week, take as long as he requires to address you on behalf of the prosecution. Mr Myers will then address you on behalf of the defendant. It is anticipated that will take us into the following week. When Mr Myers has finished I will then resume my summing-up and deliver the main part of my summing-up.

So the likelihood is, as I foresee it, because there is one day of that week that we're not sitting, the end of that week, around the end of that week, which begins on 3 July, and we're not sitting on 7 July, will be when you will be in a position to consider your verdicts in this case. And from then, it's up to you. Do you understand?

Now, I'm saying all this in the hope and expectation that nothing untoward occurs and that timetable is followed, but at least I hope it gives you some idea, because this case has gone longer than was anticipated, for a number of reasons. But that's the timetable as I see it. All right?

So I'll just confirm with Mr Johnson and Mr Myers, there is no point in the jury being kept waiting until some time later today?

MR JOHNSON: No.

MR MYERS: No, my Lord.

MR JUSTICE GOSS: It's also quite hot in here. I'm hoping that next week it will be cooler, not simply the weather will be cooler but there will be some sort of ventilation system available that will keep it cooler.

The days will be similar to the days that we've had during the course of the evidence, about an hour and a quarter, a break for 15 minutes, an hour, break for lunch, about an hour, break, and finish around 4 o'clock. Because it's going to be very concentrated stuff, as it has been throughout, but it's not going to be any different, paying attention to what's being said to you. All right?

So that's what lies in store for you, but as far as today is concerned that completes your requirement to be here. Thank you very much. I'm sorry about the inconveniences that you've been caused, but that's the plan and that's where we're going. Thank you very much indeed. Please remember your responsibilities as jurors, that is vital until the very end of the case: no communication except when you're all together and can hear everything that is said by any one of you. It must be in the presence of the other 11 and no research about anything or anyone to do with this case.

Thank you very much indeed. 10.30 tomorrow.

(In the absence of the jury)

Discussion

MR JUSTICE GOSS: Mr Myers, thank you very much for the document that you sent through or the documents Mr Myers sent through on behalf of the defence --

MR MYERS: My Lord, thank you.

MR JUSTICE GOSS: -- in relation to expert evidence.

Could we begin, please, with directions of law relating to circumstantial evidence? I'm only saying this because the conventional directions you'll be able to read from the document that I will provide when we've had these discussions. But I just want to ascertain from you both where we are in relation to what should or should not be said in my preliminary directions so far as circumstantial evidence is concerned.

On reflection, in relation to this, I am of the provisional view that I should give a simple, bland direction in relation to circumstantial evidence and similar fact evidence without descending to any argument advanced by either side or what I anticipate the arguments will be.

MR MYERS: We have nothing to add to that, my Lord.

MR JUSTICE GOSS: So I can just focus, and you can consider when you see my draft, you can look at that and see is that suitable for the purpose of a preliminary direction in relation to circumstantial evidence.

MR MYERS: We'd be assisted by seeing that. We understand the process where your Lordship is identifying it to us now and the need for that. We'll see the draft and we can assist your Lordship if necessary or appropriate.

MR JUSTICE GOSS: Thank you.

MR JOHNSON: Nothing to add to that, thank you, my Lord.

The mention of "similar fact" in a sense is the cart before the horse of cross-admissibility, which I understand is an issue between us.

MR JUSTICE GOSS: Right. Well, all right. Let's have that issue then. It's cross-admissibility, similar fact --

MR JOHNSON: It's the same thing.

MR JUSTICE GOSS: -- it's the same thing, really.

MR JOHNSON: We've prepared a fuller document in writing with the authorities, which may be helpful for your Lordship to see before embarking on the argument.

MR JUSTICE GOSS: Yes.

MR JOHNSON: It includes what we hope is a fairly comprehensive list -- or lists, I should say -- of issues where we say similarities arise which merit the cross-admissibility direction, and seeing that in writing may help to focus the argument.

MR JUSTICE GOSS: Right. Mr Myers, you've got this document?

MR MYERS: We don't have it, my Lord, so we need time to consider what this contains.

MR JUSTICE GOSS: Yes, right. Just so that I'm clear in my mind, and I'm probably being slow in relation to this, what I was proposing to do was to give a relatively straightforward direction in relation to circumstantial evidence without descending to saying what the respective arguments are in relation to that and then to give a relatively simple direction in relation to the jury if they -- the jury being able to use the evidence in relation to some events as supporting evidence in relation to others, but without identifying which --

MR JOHNSON: Oh yes, we're not submitting that as parts of the preliminary directions your Lordship should be descending into the detail so far as that is concerned, but, as I had understood the position, and it may be I've misunderstood the position, but as I'd understood it there is some controversy about whether the jury should be allowed to engage in that exercise at all.

MR JUSTICE GOSS: Right.

MR JOHNSON: It may be that I've misunderstood it.

MR MYERS: We would be assisted, my Lord, perhaps to have sight of the draft directions so we know precisely how your Lordship would deal with it and to have sight of the material that the prosecution have prepared and then we can see exactly what it is that we're talking about.

I don't want to make agreement to something if I've misunderstood anything or if there are additional points I need to raise.

MR JUSTICE GOSS: Right. Before I send you the document to look at, I can read out this passage that I would propose to say -- and this is subject to any modifications that are requested. I'll put it in context:

"Circumstantial evidence gains its force from a consideration of all the circumstances. You do not examine each piece of evidence separately and find that considered on its own that is not enough and move on to the next piece of evidence, which again, on its own, is not sufficient. You must first consider, in relation to those facts and matters that are not admitted, which of them have been proved so that you are sure of them, taking into account the completing arguments in relation to the proper interpretation of those facts. You then decide whether the combination and cumulative effect of all the admitted and proved facts and circumstances lead you to the inescapable conclusion that the defendant committed the offence or offences you are considering. You must be alert to distinguish between mere speculation and properly reasoned conclusions and inferences based on evidence.

"Speculation amounts to no more than guessing or devising theories of your own which are not based on the evidence, which plainly is something you must not do. If you are sure that, for example, in the cases of the two babies whose feed had insulin added to it, [Baby F] and [Baby L], and that someone on the unit was intent on harming those children, then you should consider how likely it is that, in the cases of other babies who collapsed or suffered unexpected events, they did so as a result of some unexplained or natural cause rather than as a consequence of some deliberate harmful act such as the injection of air or interference with breathing.

"If you conclude that this is unlikely then you could, if you think it right, treat the evidence of those insulin events and any others, if any, which you find were a consequence of a deliberate harmful act as supporting evidence in the cases of other babies. When deciding how far, if at all, the evidence in relation to any of the cases supports another or others, you should take into account how similar in your opinion the allegations and other circumstances relating to their collapses are. The defence say that there are possible causes for many of the collapses other than an intentional harmful act, that the prosecution expert evidence cannot be relied on in terms of providing explanations for many of the collapses, and that there is insufficient evidence to lead you to the conclusion that these events were related and were a consequence of any harmful act by the defendant rather than a series of unrelated collapses that ended in some cases in death."

I know there's an awful lot there, but that is the gist of what I'm proposing to direct them so far as that is concerned.

MR MYERS: We're grateful to your Lordship for providing us with that. That's helpful for us to then consider, but also to consider in light of whatever it is -- I don't mean that in any pejorative sense -- the prosecution have prepared for this.

MR JUSTICE GOSS: Exactly, yes. Both of us -- we've all got to look at that.

MR MYERS: And we can reflect upon the detail of your Lordship's draft direction and any observations we have as to that.

MR JUSTICE GOSS: Yes, exactly. Absolutely, Mr Myers.

So if I could then move on in relation to the elements of the offences of murder, which we canvassed briefly yesterday. I'm not going to read out the section in relation to causation, you can see what it is, but again any observations, comments, corrections that either of you wish to make. I address each in turn: unlawful act or acts, causing the death, intention.

Then I set out a route to verdict by way of the questions they should ask themselves and then I do the same for attempted murder. It's a document that currently only runs to just over seven pages, so it's not that long, but obviously you'll want to consider it very carefully.

MR MYERS: We would like to.

MR JUSTICE GOSS: I have also prepared some directions in relation to what I call "evidential matters", which I will give during the course of my main summing-up, in which I've incorporated, essentially, I hope, all those matters that you have suggested in relation to expert evidence. My only query, as you will see, is that I've square bracketed one of the matters that was highlighted. It's the one that is the extent to which any material upon which the expert's opinion is based has been reviewed by others with relevant expertise and the views of any reviewer on that material, because I didn't see that as applicable in this case.

MR MYERS: It possibly applies, and this is what we had in mind, with some aspects of Professor Arthurs' evidence, with his --

MR JUSTICE GOSS: That's what --

MR MYERS: -- his survey. Whatever the qualities of that, and that's something to be borne in mind, and it was dealt with in cross-examination, it is something that he did which hasn't gone

through a process, for example, that one might ordinarily have with peer review and publication.

MR JUSTICE GOSS: Now that you've reminded me, I understand where that is. Well, I will make it clearer in relation to that.

MR MYERS: I'm grateful, my Lord.

MR JUSTICE GOSS: I will retain it but make it slightly clearer. When I come to review Professor Arthurs' evidence in relation to that, I will make it plain that that is an issue that they'll have to consider.

MR MYERS: We're grateful, thank you.

MR JUSTICE GOSS: All right.

MR JOHNSON: I've emailed the document to everybody, including your Lordship's clerk --

MR JUSTICE GOSS: Thank you very much.

MR JOHNSON: -- knowing your Lordship's fondness for having these things on paper (handed). This looks a lot worse than it is. Most of it is authorities which I've summarised in a couple of pages.

MR JUSTICE GOSS: Thank you very much. I'm very grateful for that. What I'll do then is make that minor amendment to the expert evidence direction, but that is less important at this stage. I want, first of all, to try and finalise the preliminary directions.

MR MYERS: One matter I've reflected upon with regard to causation is the question of what's sometimes described as unidentified or uncertain cause which can arise.

I'll be assisted by receipt of your Lordship's draft direction, but it may be there are some matters that I would like to or we would like to raise with regard to that. I don't know what the direction says.

MR JUSTICE GOSS: No, no, exactly.

MR MYERS: But when I've seen it, it may be that's something that we would wish to raise with your Lordship for discussion.

MR JUSTICE GOSS: You can raise anything, Mr Myers. That's why we go through this process, as you know. Obviously, I'll be grateful for any representations that are made; I can't promise I will necessarily agree with them or all of them, but it will

be helpful. So I will just make that minor amendment and within a very short time you'll receive -- well, I'll send you the first set of directions in relation to the offences and then the evidential one I'll get to you very shortly as well.

MR MYERS: Thank you, my Lord.

MR JUSTICE GOSS: Thank you very much. I don't know how long -- I'm just wondering whether there's going to be any purpose in sitting before 1 o'clock. There may be.

MR JOHNSON: There's quite a lot to read if anybody wants to assimilate it. It's not actually very complicated, but the lists -- well, I'm sure my learned friends will want to review the lists before we get to the stage of anybody ever speaking as to them. They're really just -- they appear at the beginning of the authorities bundle, pages 1 to 3, I think.

MR JUSTICE GOSS: Right.

MR JOHNSON: It's the similar fact point.

MR JUSTICE GOSS: Features in common.

MR JOHNSON: Correct.

MR JUSTICE GOSS: I have that, thank you very much. Well, I certainly say that I'll want at least half an hour.

MR MYERS: I suspect we would be assisted by dealing with this after lunchtime because there seems to be a lot to read, unless there's a positive reason to return to court before then. We're all in the building. There's your Lordship's directions to consider and the material provided by the prosecution.

MR JUSTICE GOSS: 2 o'clock.

MR MYERS: Yes, we'd be grateful for that. Thank you.

MR JUSTICE GOSS: Right. So the court will not sit again until 2 o'clock. Thank you very much.

(11.58 am)

(The short adjournment)

(2.00 pm)

(Delay in proceedings)

(2.38 pm)

MR JUSTICE GOSS: Mr Johnson and Mr Myers, thank you both very much for the documents that you've submitted to me.

Mr Myers, you'll appreciate I've only had yours for literally a few minutes.

What I thought it would be helpful to do is to indicate I've read what Mr Johnson has submitted.

Thank you for clearing up the typing errors, which I've -- because I don't see them on the screen.

MR JOHNSON: We all read what we think we've written.

MR JUSTICE GOSS: Apparently it is a well-known feature of the brain. That's why I like a lot to be put on paper because apparently the brain receives it and digests it more effectively than on the screen. I've been told that by people who know these things. So thank you for those. I've corrected those.

Then there's the one where you put the footnote in relation to depending on the argument that I think we're going to have now about cross-admissibility. Can I just confirm that otherwise there is nothing in relation to legal directions 1 that you would wish to make any representations about?

MR JOHNSON: It may be that I'll answer some of the points my learned friend wants to make, but the only thing that occurred to me after I'd sent the response was -- and I can't now remember because it's occurred to me so recently, and I just can't carry all this in my head at the same time, is whether your Lordship made a specific mention of the fact that the expert evidence was uncontradicted, because plainly that is something that needs to be said, but I can't remember whether it's --

MR JUSTICE GOSS: It's not in that direction.

MR JOHNSON: Perhaps it should be.

MR JUSTICE GOSS: It could be. If I don't say it then I will certainly say it in the body of the summing-up --

MR JOHNSON: Yes.

MR JUSTICE GOSS: -- when I will be detailing what it is each expert has said and I'll just say, "That is the evidence on that issue" --

MR JOHNSON: Yes.

MR JUSTICE GOSS: -- which I think is more appropriate than --

MR JOHNSON: Yes. Well, these things are always stylistic.

I was anxious that the jury were told explicitly that they shouldn't accept any prosecution expert evidence simply on the basis that it's uncontradicted --

MR JUSTICE GOSS: Oh.

MR JOHNSON: -- by defence evidence.

MR JUSTICE GOSS: They shouldn't accept it because of that?

MR JOHNSON: Yes.

MR JUSTICE GOSS: Well, I agree, that's right. I'll make it clear. I'll just make it clear that although there is no evidence on behalf of the defence they should not therefore understand it to be uncontradicted and they still have to examine it in the way that I have then set out.

MR MYERS: We're grateful to my friend for that. That's the type of issue that lay behind our concerns in the note we sent through, so we're grateful for that, my Lord -- sorry, the note on expert direction.

MR JUSTICE GOSS: Well, exactly. You see, I have incorporated everything that you wanted to be said.

I've specifically identified the Professor Arthurs point.

MR MYERS: We're grateful, my Lord.

MR JUSTICE GOSS: It actually makes it clear what it means, otherwise when it's sort of stated in the abstract the jury may be scratching their heads, thinking, "What's he talking about there?"

MR MYERS: We're grateful for the additional time just to look at the material we've received and, again, I apologise for the late receipt, although as your Lordship will imagine, we were responding to this right up to the wire.

MR JUSTICE GOSS: Don't worry, there's no need for an apology, Mr Myers. If we need more time, we'll take more time.

MR MYERS: I'm obliged. There aren't many issues that we raise. We do say respectfully the note we've sent through is to the

point, but that was because of time, not because of discourtesy. There is a note with regard to the draft summing-up.

MR JUSTICE GOSS: That's what I have here. As I say, I haven't been able to go through it in detail.

MR MYERS: It may assist if your Lordship has the opportunity to do so because it may be there are items there that would require less by way of explanation from the defence or certainly your Lordship would be able to identify better any points the court wishes to raise with us as to what we want to say rather than me to go through it for the first time for your Lordship as I stand here now.

I should say, the point about unidentified cause and where we cite the two authorities, Cannings and Henderson, we certainly don't suggest that anything like the extent of the text that we've drawn from them, just by way of explanation, should be included.

MR JUSTICE GOSS: But it's a topic itself.

MR MYERS: It's a topic and it was just important that your Lordship saw why it was we were raising it. In fact, what we would seek is relatively brief, conceivably, but we thought it important the court should be seized of what we base it upon.

MR JUSTICE GOSS: Exactly, and there's no burden on the defence, evidential burden, in relation to establishing potential unexplained, unforeseen...

MR MYERS: But it may assist your Lordship to have time because this has come so recently.

MR JUSTICE GOSS: Well, I think I'll be able to deal with it as and when.

MR MYERS: Very well.

MR JUSTICE GOSS: But can I just therefore confirm that apart from the matter in relation to expert evidence that we've just discussed and the refinement there, or the refinements, the one Mr Johnson raised and the one you've raised there, and cross-admissibility, there are no other parts of the summing-up that you wish to make submissions about?

MR MYERS: There are three areas, my Lord. The first is with regard to a line in paragraph 4, which we have used the highlighting function on.

MR JUSTICE GOSS: Yes, about, "You do not have to be sure of precisely how or when any baby was deliberately harmed"?

MR MYERS: Yes, there's matters we raise with regard to that. We can enlarge on that if necessary. Where paragraph -- it says paragraph 8, it should say paragraph 7 in our note, my Lord.

MR JUSTICE GOSS: Right, circumstantial evidence.

MR MYERS: With regard to paragraph 7, we noted the section in square brackets where your Lordship has identified various aspects of the prosecution case --

MR JUSTICE GOSS: Yes.

MR MYERS: -- that are relied upon.

MR JUSTICE GOSS: I put those in square brackets because I'm not proposing to have that at all --

MR MYERS: Very well.

MR JUSTICE GOSS: -- that section in square brackets.

MR MYERS: That's helpful.

MR JUSTICE GOSS: Sorry, I didn't make myself clear. That was the discussion that we had and I should have removed it but I didn't.

MR MYERS: On the side of caution we'd responded to that but we don't need to so I move on from that.

The other matters with regard to paragraph 8 -- the other matter with regard to paragraph 8 is the reference to the insulin counts where the court or where your Lordship's draft deals with an example before getting into the way that similarity can apply.

It's entirely of course a matter for the court how it chooses the examples that it does but our concern, naturally, perhaps particularly so early in the process, is that that aspect of the direction has a great symmetry with what the prosecution will lean upon or articulate as a principal focus of their case. It's not done with that in mind but, as it happens, it chimes with it very powerfully and causes concern to us that if the first matter the jury hear in terms of, in effect, ex tempore comment upon the facts is a feature which has a very great symmetry with the main thrust of the prosecution case, that may be the most striking feature they take away from that and it may influence

their view of how they approach it rather than either no example given or something more anodyne.

It might seem natural the defence would raise that in this situation, I understand that, that may be how it is regarded, but just, out of concern for us, that the jury focus upon the direction rather than a factual example.

MR JUSTICE GOSS: Rather than the application of the direction to a particular fact?

MR MYERS: At that point in that way, yes, because they will, we anticipate, hear that, they'll be taken there fairly swiftly.

MR JUSTICE GOSS: I see the point. I put it there because it's -- it was accepted by the defendant that unless there was some pharmaceutical error in the making-up of the bag or someone else was responsible then this was a deliberate harmful act. But I take your point. I'll hear what Mr Johnson says. I understand why you're saying it.

MR MYERS: We're grateful for that, my Lord.

MR JUSTICE GOSS: It's perhaps something that it is appropriate to put in this document before each counsel has addressed the jury.

MR MYERS: That was our concern, just that, my Lord.

I'm grateful to Mr Johnson, who explains that with regard to the prosecution's document "Features in common", which sets out the counts with features they say are in common, that isn't something he was seeking to import via the summing-up. I had misunderstood and thought it might be.

MR JUSTICE GOSS: I hadn't understood it in that way. If that's what was intended, I wouldn't have been with him in relation to that.

MR MYERS: I'm grateful. It isn't what was intended.

MR JUSTICE GOSS: No.

MR MYERS: So that means that in fact the matters remaining are the question of the extent to which the court pursues a formal cross-admissibility direction in the way the prosecution seek and the question of how a direction on unidentified cause would be incorporated in the summing-up if your Lordship saw fit to include that.

I should say with regard to the way that the circumstantial evidence is dealt with in paragraph 8 -- I have put this in our point 5 in our defence -- the defence, I will put it this way, are neutral on the direction currently as put by your Lordship where you say this, my Lord, just towards the end of paragraph 7:

"When deciding how far, if at all, the evidence in relation to any of these cases supports another or others, you should take into account how similar in your opinion the allegations and other circumstances relating to their collapses are."

With respect, it seems to us that that properly approaches the way that it can be regarded in terms of the similarity and following on from what your Lordship has said about circumstantial evidence, that applies.

We do object to the approach the prosecution seek in this case, given its nature, and that's what lies behind the dispute as to cross-admissibility. To assist with that, we've furnished the court with an argument in fact that we drafted some months ago now before the trial began dealing with this issue and our concerns as to it.

That's something we'll come to in due course when your Lordship has heard what my learned friend has to say about it.

MR JUSTICE GOSS: Right.

MR MYERS: We need to hear the application and no doubt your Lordship does, but those are the matters arising.

MR JUSTICE GOSS: Do we need to go through the formal process? Because this is now the evidence in the case.

So the evidence is before the jury, it's the question of the way in which the jury should be directed as to how they may and may not use this evidence. Aren't we beyond the stage as to the basis upon which the evidence is admissible, be it as evidence of propensity or cross-admissibility by reason of the coincidence factor?

Aren't we beyond that? It's now -- we've got to identify, as I've just said, how the evidence in relation to one count and one set of circumstances may or may not be relevant to any other count and circumstances.

MR MYERS: The jury would need assistance with that however it's dealt with.

MR JUSTICE GOSS: Exactly, yes.

MR MYERS: It's not something that can be left hanging, we recognise that.

MR JUSTICE GOSS: That's why my paragraph 7, which begins down at the bottom of page 4:

"If you are sure that, for example, in the cases of the two babies..."

And then it's the insulin. Let's assume we remove that and we don't identify the insulin as being the starting point, but just say:

"In relation to [a particular baby] and the circumstances of the collapse and death of [a particular baby]..."

Without identifying anyone, then go on. Is there any objection to what then follows?

MR MYERS: No, we don't --

MR JUSTICE GOSS: As I say, removing any reference to insulin.

MR MYERS: No, the position we've put would seem to be only so helpful, but we don't specifically object to it.

We are neutral and that's what matters. We don't raise an objection as to it. It's difficult for us to formulate how best the evidence could be used against the defendant in these situations.

MR JUSTICE GOSS: Absolutely. That's why I think it has to be anodyne at this stage.

MR MYERS: And given the huge number of variations in facts across the different charges, which is what lay behind our original concerns, and too rigid an application of one to another when they're perhaps absent the links between counts 6 and 15, but outside those there are so many different factual variables that any direction that is too rigid in its application fails to accommodate the discrepancies that arise and the different questions the jury have to approach. It seems to us, we respectfully agree, the way in which your Lordship has approached that, given that the jury need to know how they can approach this, gives them direction on that whilst leaving it suitably textured that they can take account of the discrepancies and the differences between the counts insofar as they find they exist.

So for that reason we don't seek to go beyond what your Lordship has drafted.

MR JUSTICE GOSS: All right, thank you, that's helpful.

Obviously you can respond to anything Mr Johnson says, Mr Myers.

MR JOHNSON: Well, my Lord, so far as that final issue is concerned, which is really the most thorny issue to be resolved before the summing-up and speeches, we submit that leaving things as they are would be wrong. I say that with respect, but by reference to the decisions of the Court of Appeal, particularly in Suleman(?), and your Lordship will find the requisite or the appropriate section of the judgment at paragraph 70, which is page 51 of the bundle we have just submitted this morning.

MR JUSTICE GOSS: Page 51?

MR JOHNSON: It's page 51 in the red numbering.

MR JUSTICE GOSS: Yes, paragraph?

MR JOHNSON: Paragraph 70. The second half of the paragraph, which says:

"It seems to this court essential that the trial judge and the advocates give explicit attention to these matters before speeches in order to eliminate the risk of misunderstanding by the parties or by the jury."

And this is taken up in Adams and that's dealing specifically with the question of cross-admissibility and the important thing is in the context of the bad character matrix, if I can use that word, paragraph 18 of Adams, which is page 57 of the bundle. The point here was that no bad character notice had been served by the Crown and in the judgment of the court it was said that because that was the position adopted by the Crown:

"The jury ought to have been directed that in considering each count they would have regard only to the evidence which was directly relevant to that count and should ignore evidence relating to other counts."

And by obvious analogy, we submit that if that is not the position, in other words if cross-admissibility is a live issue, then the jury must receive explicit direction as to the use they can make of this material.

It's particularly important, my Lord, because, just going back -

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MR JUSTICE GOSS: Well, paragraph 18 comes in the context of paragraph 17.

MR JOHNSON: Yes.

MR JUSTICE GOSS: "No notice was given by the prosecution who wanted to rely on any evidence."

MR JOHNSON: That's what I said, my Lord. That was a case in which there was no notice, therefore the jury should have been told that they could only look at cases in compartments, whereas we are submitting that because the opposite is the case, the jury have to be given a specific direction as to the use that they can make of this material.

MR JUSTICE GOSS: Right. Can you provide me then with a proposed draft as to what I should say?

MR JOHNSON: I can certainly -- yes, not immediately.

MR JUSTICE GOSS: No, but I mean I think it would be helpful if you formulated exactly what you are -- how you're saying it should be.

MR JOHNSON: Yes. It may be, my Lord, that there is quite a lot of help to be derived from the decision of the Court of Appeal in Freeman and Crawford, which is page 20. I am going from my summary, but I think it's probably paragraphs 17 through to 20 of Freeman, which is of the bundle to be found at page -- it's the highlighted part, pages 26 and 27.

MR JUSTICE GOSS: Yes.

MR JOHNSON: So the admissibility issue is dealt with by reference to the decision in Chopra at paragraph 17.

Then over on to page 27, in that particular case the sole question was whether in such a case bad character evidence met the criteria in 101D and, in our case, 101G.

And then -- and this is where it ties in, in effect, with the draft direction that your Lordship sent us earlier:

"The evidence may provide strong circumstantial evidence that the offences were committed by the same person", and so on.

That's really the point that the direction has to cover.

MR JUSTICE GOSS: Exactly, yes.

MR JOHNSON: So it's very much along the lines of what your Lordship has included in the context of circumstantial evidence, but goes beyond that and should, we submit, go explicitly beyond that because it has to cater for the -- it has to take account of the direction that the jury have to consider each count separately. So in other words, separate verdicts on each count, but perhaps a word of explanation that that doesn't mean that the evidence you heard in blocks can only be heard in those blocks and then give examples of why that might be the case.

So I'm sure we can come up with a suggestion. But really, the main thrust of the point is that there are so many cross-case similarities and that's where our 13 heads of similarities come in.

MR JUSTICE GOSS: Yes, but I can't start doing that.

MR JOHNSON: No, no.

MR JUSTICE GOSS: No.

MR JOHNSON: It may be that the most apposite demonstration or elucidation of the issue or the principle is the one that we have included in our application, namely it's a recognition of the fact that the coincidence of presence and event is in itself probative evidence. So one is looking at the evidential position across allegations.

MR JUSTICE GOSS: Yes.

MR JOHNSON: Or another example might be, and it's another one we've put into writing, counts 17 to 19. Looking at count 17 on its own might raise more questions than answers, but making the point that the jury aren't simply confined to looking at count 17 on its own, they can take account of what happened on 15 June as well and put that into the context of the case overall.

MR JUSTICE GOSS: Right.

MR JOHNSON: Clearly there needs to be a bit of thought given to it.

MR JUSTICE GOSS: I'll hear what Mr Myers says in relation to the general proposition.

MR MYERS: My Lord, the situation as far as we perceive it to be in Adams was that the jury hadn't been given any or any adequate direction at all. I look at paragraph 13, which lists the grounds of appeal and the first was that:

"The judge had erred in not giving the jury any direction about whether, and if so, they could rely on the evidence of each complainant [they were sexual allegations] when considering allegations made."

That's the context in which this decision took place. And if your Lordship goes through it, looking at the sections my learned friend refers to, particularly paragraphs 18 and 19, the problem created was that there was no direction given for the jury to understand how in a case when there were a variety of charges that may after to have some applicability one to the other, how they should do that. And paragraph 18 concludes by saying:

"No such direction was given by the judge."

This is to how it could be used on any count, one on the other:

"Indeed, he did not give any direction to the jury at all with regard to whether, and if so how, they could take account of evidence relating to one count when considering other counts and in particular whether they could take account of either complainant's evidence when considering the allegations made by another."

And following on, the court identified at paragraph 19:

"The only direction which the judge gave about how the jury should approach the different counts was a standard direction to say they should consider the case against the fourth defendant on each count separately."

It goes on to say:

"They didn't tell them, in other words, how to look across them."

The direction that your Lordship has drafted does do that and it does that, and we put it this way, in an open, textured fashion in that it identifies a way of approaching it without being overly prescriptive, which we submit is a problem if it is because these counts are different.

We do observe that whilst the prosecution have produced the document that your Lordship has, the features in common, as it's put, between the counts, your Lordship will notice they're not in common as between every count across the whole of this indictment, they're various in fact, there are some themes that repeat, but one is not a carbon copy of the next. And in our submission, it's important not to approach this as if they can be applied in that way, which goes beyond what's necessary, so

we submit that the direction as drafted at the moment deals with the assistance the jury would require.

MR JUSTICE GOSS: Thank you, Mr Myers.

Mr Johnson, I'm not against you, but I would be assisted by a proposed reworking of my basic direction incorporating the matters you say should be incorporated.

MR JOHNSON: Certainly.

MR JUSTICE GOSS: If you could provide that. I will also independently consider an amended version and then we could perhaps exchange those --

MR JOHNSON: Yes.

MR JUSTICE GOSS: -- obviously with Mr Myers and Mr Myers can respond.

MR JOHNSON: There are two points, my Lord, we submit. The first is the taking the step back completely point and looking at evidence across all the counts. The second point is the one --

MR JUSTICE GOSS: So the unlikelihood of coincidence that she was on duty on every occasion an event --

MR JOHNSON: Exactly. It's not -- we're not quite... The fact that she's on duty every time, the fact that Lucy Letby is on duty every time something that we say is a criminal offence happens would be conclusive proof for obvious reasons. But there's very much a danger --

MR JUSTICE GOSS: Assuming that they are non-natural events.

MR JOHNSON: Yes, absolutely, if they are criminal offences.

But that could be seen as putting the cart before the horse, so we don't advance that as an argument in itself.

One of the important points, and it's one that I've set out in writing at page 6 of our submissions, it's under paragraph 7.4, which we respectfully submit can be derived from Suleman, which is if -- this is the more obvious point that if the jury conclude that Lucy Letby is guilty of any of these offences taken in isolation, then that, to use a metaphor, could be the first domino that starts then to knock down the row of dominoes. But we do not restrict ourselves to that approach because we submit that, taking as an example the insulin cases, if the jury concluded that they were both poisonings and because of all the circumstances of each of those offences, viewed separately and

together, there are in reality only two potential possible culprits and they look at the circumstances of, say, [Baby O] and conclude that that undoubtedly was a crime, and putting that together with the two insulin cases, that removes the other potential culprit, they then have evidence of three -- evidence in three cases whereby combining the circumstances of each together they've not made any decision as to whether has Lucy Letby committed any of those offences, but they have put the circumstances of the three offences together and can say an offence has been committed in each of those cases because of the combination of evidence.

They look at who was present, they decide that it has to have been somebody that was on the requisite shift and that she is the only culprit, that doesn't involve making a decision in a single case and knocking down further dominoes. That involves putting together the circumstances of three separate cases and because they are cross-admissible for the reasons we have set out in writing, concluding that the only reasonable inference to draw, once they've decided that crimes have been committed, is that Lucy Letby is the culprit.

They then take those three convictions, so two convictions for attempted murder and one conviction for murder, they then approach the rest of the exercise on the basis that what they have in the dock is a woman who has murdered a child and tried to murder two others and then look at all the circumstances of all the other offences.

They wouldn't be entitled to do that if there was no bad character application, but they plainly are entitled to do that on the facts of this case. So that is the best I can do to explain what the principle here is and it's just coming up with a way of --

MR JUSTICE GOSS: It's formulating an appropriate way of conveying this in as simple as terms as possible.

MR JOHNSON: Exactly, yes.

MR JUSTICE GOSS: Of course there's the Freeman point which, if my recollection is not failing me, was really following -- there was a case called XYZ, wasn't there, whereby in determining, I think it was three incidents, the jury didn't have to be satisfied that they were sure in relation to one --

MR JOHNSON: Exactly.

MR JUSTICE GOSS: -- in order to determine -- this is the difficulty of incorporating it. I've understood exactly what you're explaining in relation to them being satisfied so that

they're sure in relation to 1, 2 or 3 offences, then they can use that in relation to other ones if they consider it's appropriate. But they don't even have to get that far.

MR JOHNSON: No, they don't. I'm thinking on my feet, but the best way of giving an example might be to use the facts of Freeman, actually. I'll see.

MR JUSTICE GOSS: I think we all need to think about this in more detail.

MR JOHNSON: I was going to respectfully offer for your Lordship's consideration the possibility that the jury might be told to come back at 2 o'clock tomorrow, just so that we're not -- it would be a shame to make a mistake at this stage, which we regret later under pressure of time. It's not going to make any difference to --

MR JUSTICE GOSS: It's going to make a difference to my personal situation --

MR JOHNSON: I'm sorry.

MR JUSTICE GOSS: -- because I have to leave the building by 2.30.

MR JOHNSON: 12 o'clock then.

MR JUSTICE GOSS: I was going to say, or even 11 o'clock or 12 o'clock. By 12 o'clock, yes. Because when I do actually deliver this, it's only going to take 20 minutes.

MR JOHNSON: Yes.

MR JUSTICE GOSS: Can we decide on that, that the jury should be told to be here for 12 o'clock tomorrow?

MR MYERS: By all means. However it works best for your Lordship and the court.

MR JUSTICE GOSS: Thank you very much. Then I think, Mr Johnson, you will work on how you would propose the direction should be formulated. Mr Myers, you can work on how you would propose the direction could be formulated if it differs in any way from mine as amended.

MR MYERS: Yes.

MR JUSTICE GOSS: And I will work on mine. Then we can exchange drafts and see where we get to.

MR JOHNSON: There's another issue I would like to raise if I may.

MR JUSTICE GOSS: Yes, certainly.

MR JOHNSON: That was the defendant's evidence that she has PTSD. It's something that was included in the email, it's an issue that was included in the email that I sent to the court at about 6 o'clock last Friday morning, where I raised the question of agreed evidence, if your Lordship recalls, which resulted in Mr Myers saying something to the jury about the evidence of [Father of Baby N].

MR JUSTICE GOSS: Exactly. Yes, this was another topic, yes.

MR JOHNSON: We submit that there is no -- we don't understand what the relevance of PTSD is in this case.

That's the starting point. We submit it has no relevance. That point was accepted by the defence at a pre-trial hearing when we asked the question, because we were going to get some more evidence ourselves, but we were told that the only relevance was as to trial management and pre-trial issues. It was introduced by the defendant in examination-in-chief and I didn't explore it deliberately.

Her assertion that she has PTSD is not admissible evidence and if nothing further is said about it I, on behalf of the Crown, will not complain. But --

MR JUSTICE GOSS: Can I stop you there? Because as you were addressing me and reminding me of that issue I was thinking it's a dangerous path to go down at this stage and I would propose, subject to anything Mr Myers may say, simply to make no reference to it.

MR JOHNSON: Absolutely.

MR JUSTICE GOSS: I wasn't -- in my summing-up, I wasn't proposing to refer to it at all. Mr Myers?

MR MYERS: No.

MR JUSTICE GOSS: I shall refer to other things she said but not a diagnosis of PTSD.

MR MYERS: No, that's not something (inaudible) questioning, actually, and it's not something we propose to refer to and it's not something we asked about specifically. The point that we sought to develop --

MR JUSTICE GOSS: There's no complaint.

MR MYERS: I understand that.

MR JUSTICE GOSS: I will remind the jury of her evidence in relation to her stresses and isolation and that was -- and the various explanations she's given about why she said things, did things, didn't say things, wrote things, didn't write things, things like that, but I will not refer to post-traumatic stress disorder at all.

MR MYERS: Nor would we, my Lord, nor did we intend to or were alert to that.

MR JUSTICE GOSS: I think we are all agreed on that.

MR MYERS: I have the passage here with me in fact.

MR JOHNSON: It was inserted by the defendant, not by my learned friend.

MR JUSTICE GOSS: There's no criticism of you, Mr Myers.

MR MYERS: I understand that, my Lord, I understand that.

We do understand that. I do rely on what's described as the impact and her anguish in the situation she found herself and how she struggled and how she had to have help from her GP -- she said that, she said she was depressed and couldn't sleep -- but we don't extend that and didn't propose to extend that into talking about PTSD.

MR JUSTICE GOSS: No. Thank you, Mr Myers. I hadn't anticipated you would and I wasn't going to refer to it anyway. So that will not be referred to.

MR JOHNSON: The other point I would like to ventilate is the other agreed evidence that may have been unagreed in the witness box.

MR JUSTICE GOSS: Yes.

MR JOHNSON: There has been no intervention by my learned friend to suggest that that other evidence, in other words evidence other than [Mother of Baby N] and [Father of Baby N], that that was agreed by mistake. That is something I will mention. If my comment is intended to be met by my learned friend in his speech giving the defendant a bye on that as well, I would like to know in advance.

So in other words, I phrased that rather inelegantly, if my learned friend is going to say all that was a mistake as well then I must be entitled to know that before I decide what I'm going to say.

MR JUSTICE GOSS: Otherwise you'd be making a false point essentially.

MR JOHNSON: Exactly.

MR MYERS: My Lord, I know my learned friend didn't mean "given a bye" in any pejorative sense -- well, I assume he didn't, but no, that's not what I'm about to do.

We've dealt with that one particular issue because, as the court saw, that caused us particular concern as it was unfolding and we accepted the situation there.

MR JUSTICE GOSS: You will have seen in my draft, paragraph 3:

"The evidence of witnesses that was read to you as agreed evidence [line 5 it begins] meant that the defence did not want to challenge anything the witness said. On a few occasions a part of the evidence of a witness which was read to you was then disputed by the defendant in her evidence."

I don't make any comment other than to say in those instances those witnesses fall into the same category as the disputed evidence of a witness who gave oral evidence. Mr Johnson will want to say that is a consequence of --

MR JOHNSON: Absolutely. Given what my learned friend has just said, we submit that your Lordship should be specific in that particular direction in confining that to [Father of Baby N] and [Mother of Baby N] because the defendant did from time to time -
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MR JUSTICE GOSS: In the cases of [Father of Baby N] and [Mother of Baby N], yes.

MR JOHNSON: Yes, because in other cases the defendant arguably sought to row back from having agreed evidence and the direction in the form that your Lordship has hitherto drafted would cover those eventualities as well, which we now know it shouldn't.

MR JUSTICE GOSS: Yes, they would embrace the extra ones.

I'll just identify those two, Mr Myers. Thank you very much.

Right. Yes, Mr Pilling?

MR PILLING: Do you mind if I ask a question?

MR JUSTICE GOSS: You can ask it. I can't guarantee I'll answer it, but you may ask the question.

MR PILLING: Can the press be provided copies of the written directions?

MR JUSTICE GOSS: Is there any objection to that from anyone?

MR MYERS: I can't think of one, my Lord. Not that I'm trying to, but I can't.

MR JUSTICE GOSS: There will be -- you will be provided with a copy of the finalised written directions.

They will be in two parts, as you probably understood. Part 1 will be delivered tomorrow. Part 2 will be delivered during the course of the summing-up, the main part of the summing-up, after counsels' speeches. But you'll have a copy of that as well.

MR PILLING: Can we have part 1 tomorrow?

MR JUSTICE GOSS: Oh yes, you'll get part 1 contemporaneous with its delivery.

Now, Mr Pilling, whilst I have you and your attention here, I've had a request, which you may be aware of, for a particular journalist, who says it's on behalf of others as well, that they would like a copy of my summing-up, the script of my summing-up, as I deliver it, so that they --

MR PILLING: I'm aware of it.

MR JUSTICE GOSS: Perhaps you can communicate. I will respond through my clerk to the request by declining it because, firstly, I don't think it's appropriate that the media should have a copy of a summing-up before I deliver it. Secondly, I may, and often do, depart in some ways when I'm delivering it and if the journalist is not -- I'm not suggesting malice or deliberate wrongdoing, may inadvertently report the wrong part, what's written, which wasn't said. And then again, most importantly, something I say that may be in the script may be subject to correction by counsel and I have made an error. So for those reasons, it's not appropriate.

MR PILLING: Yes.

MR JUSTICE GOSS: Would you pass it on, please? Thank you very much. But certainly as far as the written legal directions are

concerned, which is a court document, you may have a copy of that.

MR JOHNSON: I'm reminded in relation to the correction that your Lordship was going to make relating to [Mother of Baby N] and [Father of Baby N], perhaps the copy that's made publicly available shouldn't include their names because there is an order.

MR JUSTICE GOSS: Yes. All right, yes. The names will be blanked out. Thank you very much.

In relation to the second set of legal directions, I have addressed the point that you raised. You haven't had chance to get on to those yet, Mr Myers?

MR MYERS: We have looked at them and if anything had been prominent we would have identified it, but we need a little more time to go back over them.

MR JUSTICE GOSS: There is no rush. You can have until next week in relation to that. So let's focus on legal directions 1, please, and try and get those resolved.

MR MYERS: Yes, we agree.

MR JUSTICE GOSS: Put those aside, number 2, until after that. Thank you very much indeed.

As I indicated, Mr Pilling, if you wanted a copy of the reasons for my ruling in relation to the social media timeline -- do you remember? I granted the application in certain terms. If you want a copy of that, I'm not suggesting you do, because it became part of the evidence and I don't think the readers would be particularly interested in that.

Thank you very much. As you know, the channels of communication are open 24 hours a day. I'm not inviting you to send any documents after 11 pm tonight and before 7 am tomorrow, but otherwise, outside that eight-hour period, they will be read and considered.

MR MYERS: Thank you, my Lord.

MR JUSTICE GOSS: Thank you very much.

I think in fact -- do you think, out of an abundance of caution, we should say 10 o'clock for counsel? And then if it transpires that we don't need that time you can be doing other things.

MR JOHNSON: Yes, we'll be here anyway.

MR JUSTICE GOSS: I think it's better to err on the side of caution. The case will be listed for 10 o'clock; the jury will be told to be here for 12 o'clock.

MR MYERS: We anticipate the arrangements are such that Ms Letby will be here in time for that. We'd be grateful for that.

MR JUSTICE GOSS: Yes, thank you very much. The familiar faces are there and they're all indicating that's all right. Thank you very much.

Well, thank you all very much. I can't see that we need to sit again this afternoon.

MR MYERS: No. There's one matter at the start of our note to your Lordship dealing with paragraph 4. I leave that with your Lordship as to whether anything comes from that. We haven't dealt with it. It was the line about --

MR JUSTICE GOSS: Oh yes, of course, sorry, you're quite right.

MR MYERS: "If you're sure someone on the unit was deliberately harming a baby or babies, you do not have to be sure of precisely how or when any baby was deliberately harmed."

That was something which was put to one side as we were dealing with it.

MR JUSTICE GOSS: Yes.

MR MYERS: That is something that, respectfully, causes us concern for the reasons we've set out.

MR JUSTICE GOSS: Yes, I've seen those.

MR MYERS: Because it lacks -- this isn't said to be discourteous in any way, but it risks lacking a precision in terms of what it is that the jury are applying their deliberations to and we put the reasons for that in the note that we provided.

MR JUSTICE GOSS: Yes.

MR MYERS: Because we've set it out -- there are seven points as we identified them in our response. The first is the indictment is specific to time and place. And secondly, in most cases, maybe not all, but most cases the allegations are based upon an alleged mechanism or mechanisms and that's been looked at in detail in the evidence and it's important and has been important, certainly up to now, in that is the way the

allegations are framed. That's how they were opened and presented.

MR JUSTICE GOSS: I have the points. My phrasing is infelicitous and not sufficiently specific. I was relying on the use of the words "precisely" and "how", but I will make it clearer and more appropriate.

That'll be in the draft I'm preparing.

MR MYERS: Thank you.

If I may add one other thing that relates to this: in the context of the direction that we've been dealing with about similarity, whether that is, as it's currently framed, in the circumstantial section or any amendment to that along the lines my learned friend suggests, that would be potentially fraught with peril.

In fact, we are concerned about that because then, if we're moving from the position the prosecution are saying where once the jury have established that the defendant has been responsible for any number of offences, that creates in effect, it seems to us, to be a floating finding that could be attached to whatever they wish to attach it to. That's how it seems to us at this point. To combine that with anything that suggests there is any lack of precision required in what it is they're attaching that to would amplify any concerns.

MR JUSTICE GOSS: All right. Mr Johnson, you wanted to say something?

MR JOHNSON: With respect, we disagree with my learned friend's submissions on your Lordship's paragraph 4. As a very good example of why, we'd point to the case of [Baby H], in which both prosecution experts said that they couldn't --

MR JUSTICE GOSS: Identify.

MR JOHNSON: Exactly, but they were sure from all the circumstances that there were no natural causes that would account for that collapse.

MR JUSTICE GOSS: Well, I'll try and accommodate both sides here in a slight redraft. I'm alive to the point.

MR JOHNSON: There's also sometimes a conflict between Dr Bohin and Dr Evans.

MR JUSTICE GOSS: What I'm going to make clear is they don't have to be sure in the case of any particular baby the precise cause

or causes because, of course, if you go down that route then you enter problems of some jurors saying, "I think it was this", and one saying, "I think it was that that was the cause". In particular, when we get to the last cases, with the bleeding to the liver and evidence of -- potentially evidence of more than one mechanism in play.

MR JOHNSON: Yes. The issue is: was there an unlawful -- some unlawful act committed by this defendant --

MR JUSTICE GOSS: That was causative of --

MR JOHNSON: There's no lack of precision. We have nailed our colours to the mast as to when things are happening.

MR JUSTICE GOSS: Yes, I can see -- I understand, Mr Myers.

MR MYERS: My Lord, it is important, actually. This is, with respect, not an insignificant point and we disagree with the analysis that's being applied. If the prosecution are unable to identify with specificity how it is there's an offence that's been committed then, so far as we are concerned, and of course we abide with the directions as your Lordship finally frames then, but that to us is a significant matter and it is -- in a case where causation is something the jury have to look at, they need to know what it is that took place.

If they don't know what it is that took place and if the prosecution cannot prove that then, in our submission, that undermines their case on any given count and it's not good enough to say, "Well, the expert couldn't say what it was in the case of [Baby H]", particularly in a case where there is such a full frontal attack and criticism to the prosecution expert evidence and a case in which the defence have maintained throughout there is a strong element of looking for allegations to support a prosecution theory rather than to reflect the facts.

In that situation it isn't, we respectfully submit, appropriate for a jury to be told that it perhaps matters not how it was done or the detail, what matters is that something was done. Because put in that way, that is far too vague set against the allegations that are being made and the issues the jury have to consider in terms of intent and causation. It's so vague that there is nothing factual, potentially, for them to attach those considerations to.

So we don't, with respect, agree with the analysis presented by the prosecution that it's enough to say that something happened at that point. And for that reason we respectfully take issue with the way it was framed in the draft direction because it

matters very much, in our submission, precisely how these events took place. Without that, there is imprecision and there is a good deal too much vagueness to be fair for the jury to be able to attach their deliberations on the facts to what it is that's meant to be proved. We can't move so far from the facts that in effect legal directions become so numinous they exist in a vacuum without being solidly applied to a factual allegation. If the evidence can't achieve that --

MR JUSTICE GOSS: So are you saying then that in relation to any particular baby the jury have to be sure of a particular causative harmful act in order to convict?

MR MYERS: Well, there has to be sufficient certainty as to what took place that they can be sure of an assault and, of course, that the defendant is responsible and to do that it is not insignificant, in our submission, that there need to be facts that that attaches to. It can't be enough to say, "Well, something's happened, the defendant is responsible", and perhaps particularly in a case where the prosecution are seeking to advance this, on the argument we've just heard, which is that if the jury are satisfied on a particular count of the defendant's guilt, and it sounds as if it's not even they have to be satisfied on that, they have to simply be satisfied, on a convergence of counts, that there is sufficient to create responsibility on behalf of the defendant, that can then be applied generally to whichever count they come to next and in our submission that is dangerously imprecise in a case like this. If it is the case that the prosecution cannot establish to the satisfaction of the jury what the facts are upon which their allegation is based, then that isn't sufficient and the jury, properly directed, will be in a position to reach those conclusions.

But starting from where we are at the moment, it is our submission that when the direction says:

"You do not have to be sure of precisely how or when any baby was deliberately harmed..."

Combined with the prosecution's approach, which is it doesn't matter if no particular mechanism can be identified, that isn't good enough, we respectfully observe. It isn't good enough and it puts the defence in an impossible position with a very vague set of allegations then. And we wonder actually what it was we spent the time that we did on the evidence that we did do for 6 months if it turns out no particular mechanism has to be alleged.

MR JUSTICE GOSS: Well, it's "no particular precise mechanism". One comes back to the example: what about a no-body murder case,

when somebody simply disappears and the prosecution allege this person has been murdered by X and that is why they have disappeared? No mechanism of death can be ascertained there, can it?

The jury are invited to infer from all the evidence that that person met an unlawful death and their body has been disposed of in some way.

MR MYERS: But my Lord, that's because, we observe, in a situation like that there is something inherently calling for an explanation and out of the ordinary and potentially criminal when somebody has disappeared, for example, they have vanished altogether, and there are other factors which may indicate offending has taken place and no explanation is available for the disappearance of somebody. That is to be contrasted with a situation on the neonatal unit where there are potentially fragile, premature babies for whom it is not extraordinary that it there can be a deterioration or even a rapid deterioration in particular circumstances.

So whereas in the missing body murder case it is inherently suspicious that something like that has happened, it is not inherently suspicious that a baby on a neonatal unit might become unwell. In itself it isn't.

MR JUSTICE GOSS: In itself, isolated occasions or some occasions occurring, but I think we're -- I understand what your point is, Mr Myers, but I am not going to direct the jury that they have to be sure, for example in the case of [Baby A], for argument's sake, which actually is quite a clear one in the sense --

MR MYERS: The allegation is.

MR JUSTICE GOSS: The allegation is clear that there was intravenous injection of air. But in relation to other ones where there are -- the differential diagnosis, everything else is excluded, so to speak, of known reasons, and then there are these other possible reasons, distended stomach and things like that, or vomiting, which indicates it may have been milk, they don't have to decide, well, it was definitely air that was put down the stomach or it was definitely milk that was put down the stomach. That's what I'm trying to avoid and that's when I'm saying precisely how.

MR MYERS: Very well.

MR JOHNSON: It's the point we made in our response to the submission of no case at paragraph 22 of our response.

Your Lordship has, partially at least, repeated, no doubt unwittingly, what we said. We mentioned no-body murder cases.

MR JUSTICE GOSS: Well, I was just thinking of my experience of no-body murder cases.

MR JOHNSON: Absolutely, but it's paragraph 22. We make the point that in our -- well, how we phrased it then was:

"In all the cases in relation to which the application of the submissions of no case were being made, the treating and expert medical practitioners have all said that in their view there was no natural, non-criminal cause for the child's collapse. That in itself and independently of the evidence of air embolus is sufficient evidence on which a jury may properly consider the question of Lucy Letby's liability. It is not necessary for the prosecution to prove how the children died or what precise mechanism caused their collapses, only that the killings were unlawful, at the hands of the accused, and at the time she had the requisite intention."

And the most obvious example of that as a proposition was a murder case in which there is no body.

MR JUSTICE GOSS: Well, there we are. All right. Again, I will draft something. I'm not going to invite anyone else to draft anything in relation to that. I will draft something to which you can both respond. So Mr Myers, I'm mindful of your submissions in relation to that and I will consider them and the way in which, where appropriate, they can be accommodated.

MR MYERS: I'm grateful, my Lord.

MR JUSTICE GOSS: Right. Anything else? No? Thank you very much.

Just to confirm, the court will be sitting at 10 o'clock tomorrow. The jury will not be here until 12 o'clock. Thank you very much. Does anyone --

MR MYERS: Yes, we would like a visit with Ms Letby if we may, please.

MR JUSTICE GOSS: A visit before the defendant leaves the building, please. Thank you very much.

MR MYERS: Thank you, my Lord.

(3.35 pm)

(The court adjourned until 10.00 am on Thursday, 15 June 2023)